

26STCV00857 26STCV00857

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-09-01

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Case Number: 26STCV00857 Hearing Date: September 1, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV00857

NAVIN

HEMRAJANI vs DAVID GLASS, et al.

September

1, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' MOTION TO COMPEL ARBITRATION.

RULING:

The Court grants the unopposed
Motion.

Plaintiff
and Defendants shall arbitrate the controversies between them including this
entire action.

This
case is stayed until such arbitration is had in accordance with this Order.

The
Court schedules a Status Conference Re: Arbitration on September 1, 2028 at
8:30 a.m. in Dept. 311.

Defendant
to give notice.

I.
BACKGROUND

On January 12, 2026, NAVIN
HEMRAJANI (Plaintiff) filed a Complaint against ENENSTEIN PHAM GLASS &
RABBAT, APC and DAVID GLASS (Defendants), listing Causes of Action for:

1.
PROFESSIONAL NEGLIGENCE LEGAL MALPRACTICE

2.
BREACH OF FIDUCIARY DUTY

3.
BREACH OF CONTRACT.

Plaintiff alleges that Defendants
as attorneys negligently handled a family law action in which Plaintiff was a
party.

On August 5, 2026, Defendants
filed the Motion to Compel Arbitration, based upon an Engagement Agreement.

Plaintiff has not filed
an Opposition to this matter.

II.

LEGAL STANDARD

Parties

petitioning to compel arbitration have the burden to prove the existence of a valid arbitration agreement by a preponderance of evidence, and parties opposing have the burden to prove by a preponderance of the evidence any fact necessary to a defense. (*Gonzalez v. Nowhere Beverly Hills LLC* (2024) 107 Cal.App.5th 111, 121.)

Where

a court has ordered arbitration, it shall stay the pending action until an arbitration is had in accordance with the order to arbitrate, or another earlier time, and the stay may be with respect to an issue that is severable. (Code Civ. Proc., § 1281.4; *Mattson Tech., Inc. v. Applied Materials, Inc.* (2023) 96 Cal.App.5th 1149, 1161; *Heritage Provider Network, Inc. v. Superior Court* (2008) 158 Cal.App.4th 1146, 1152, 1154, fn. 12.)

III.

ANALYSIS

Defendants assert that

there is an “Engagement Agreement” with Plaintiff dated August 30, 2024, requiring any disputes to be submitted to binding arbitration.

Parties seeking to compel

arbitration meet their initial burden simply by reciting the terms of the governing provision, or by attaching a copy of the provisions, unless there is a dispute over authenticity. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

The Declaration of

Defendant DAVID GLASS filed with the Motion sufficiently includes the Engagement Agreement (Exhibit A) containing paragraph 13.1 providing for arbitration for any claim arising out of the contract.

IV.

CONCLUSION

Therefore, the Court grants
the Motion, for reasons stated.